

SENATE No. 479

The Commonwealth of Massachusetts

PRESENTED BY:

Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve transparency and accountability for residents of long-term care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joan B. Lovely</i>	<i>Second Essex</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/31/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/9/2025</i>

SENATE No. 479

By Ms. Lovely, a petition (accompanied by bill, Senate, No. 479) of Joan B. Lovely and Joanne M. Comerford for legislation to improve transparency and accountability for residents of long-term care. Elder Affairs.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve transparency and accountability for residents of long-term care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (g) of Section 70E of chapter 111 of the general laws as
2 appearing in the 2022 Official Edition is hereby amended by striking the remainder of the
3 sentence after the words, “other rendering of care,” and inserting the following:

4 “and in their assigned room, including, but not limited to being the sole resident of such
5 room, unless said resident, or their guardian or health care proxy, mutually agrees to share the
6 room with a spouse or not more than one other resident, and that in the absence of a second
7 resident, the bathroom is not shared with any other person.”

8 SECTION 2. The executive office of health and human services shall, if necessary, seek
9 federal approval for any appropriate increase in rates for such single-occupancy rooms.

10 SECTION 3. The department of public health shall promulgate appropriate regulations to
11 promote the use of single rooms and single bathrooms in every licensed facility in the
12 Commonwealth.

13 SECTION 4. This act shall apply to any new or substantial renovation, of a licensed
14 facility. Every facility that holds a valid license as of the effective date of this act shall be
15 allowed not more than three years from the date of this act to achieve compliance with the
16 provisions herein.

17 SECTION 5. Subsection (e) of said section 35TTT of chapter 10, as amended by chapter
18 197 of the acts of 2024, is hereby amended by inserting after the word, “facilities,” the following
19 words, “provided, however, that priority shall be given to projects that are intended to
20 reconfigure facilities to provide single occupancy rooms for residents.